

SENATE No. 1392

The Commonwealth of Massachusetts

PRESENTED BY:

Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying resolve:

Resolve providing for a study and recommendations by a special commission relative to access to behavioral health services for children and families in the commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Julian Cyr</i>	<i>Cape and Islands</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/27/2025</i>

SENATE No. 1392

By Mr. Cyr, a petition (accompanied by resolve, Senate, No. 1392) of Julian Cyr and Joanne M. Comerford that provisions be made for a special commission to study available behavioral health services and to make recommendations for improving access to behavioral health services for children and families in the commonwealth. Mental Health, Substance Use and Recovery.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Resolve providing for a study and recommendations by a special commission relative to access to behavioral health services for children and families in the commonwealth.

1 **Resolved**, that there shall be a special commission to study available behavioral health
2 services and to make recommendations for improving access to behavioral health services for
3 children and families in the commonwealth.

4 The commission shall consist of: the secretary of health and human services or a
5 designee, who shall serve as chair; the assistant secretary of MassHealth or a designee; the
6 commissioner of mental health or a designee; the commissioner of children and families or a
7 designee; the commissioner of early education and care or a designee; the commissioner of
8 elementary and secondary education or a designee, the chairs of the joint committee on mental
9 health, substance use and recovery or their designees; the chairs of the joint committee on
10 children, families and persons with disabilities or their designees; a representative from the office
11 of the child advocate; a representative of the Association for Behavioral Healthcare, Inc.; a
12 representative of the Children’s League of Massachusetts; a representative of the Children’s
13 Mental Health Campaign; a representative of Health Law Advocates’ Mental Health Advocacy

Program for Kids; a representative of the Massachusetts Association of Behavioral Health Systems; a representative of the Massachusetts Health and Hospital Association; a representative of the Massachusetts Medical Society, a representative of the Massachusetts Association for Mental Health; a representative of the Parent/Professional League; and 3 individuals to be appointed by the chair, 1 of whom shall be a parent with experience seeking behavioral health services for a child enrolled in MassHealth; 1 of whom shall be a parent with experience seeking services for a child from the department of mental health, 1 of whom shall be a family member or caregiver of a child who has received behavioral health services while in the care of the department of children and families.

All appointments shall be made not later than 30 days after the effective date of this resolve. The chair shall meet with the commission not later than 60 days after the effective date of this resolve.

The commission shall: (i) identify the range of behavioral health services, including services and treatment for substance use disorder, available to children and adolescents under the age of 22 in the commonwealth; (ii) identify, and quantify to the extent possible, the challenges children, adolescents, and families face in seeking behavioral health services across the commonwealth, including but not limited to, access, affordability, cost-sharing, administrative requirements, programmatic complexities, insurance or state program denials, staffing, wait times and geography; (iii) review the application process and eligibility criteria for children and adolescents seeking services through the department of mental health; (iv) review policies and adherence to policies that seek to ensure quality behavioral health care for children and adolescents in the care of the department of children and families; (v) review access challenges specific to commercial insurance coverage for behavioral health services for children and

adolescents, including but not limited to, clarity regarding services covered, prior authorization, cost-sharing, billing complexities and administrative requirements; (vi) review state funding dedicated to behavioral health services for children across state agencies and examine the impact of how those funds are used to maximize the delivery of services and available federal resources; and (vii) examine other matters deemed relevant by the commission. Based on the commission's finding, the commission shall make recommendations for improving access to behavioral health services for children and adolescents in the commonwealth through suggested policy changes, proposed funding modifications, and the development of a 5-year strategic plan for the delivery of behavioral health services for children and families that considers all providers and payers.

The commission shall submit its findings, recommendations, and strategic plan to the clerks of the senate and the house of representatives, the joint committee on mental health, substance use and recovery, the joint committee on children, family and persons with disabilities, the joint committee on health care financing, and the senate and house committees on ways and means not later than December 31, 2027. The secretary of health and human services shall make the report publicly available on the website of the executive office of health and human services.